

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, SEPTEMBER 1, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, September 1, 2026**. The tentative ruling will be the court’s final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, August 31, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court’s website: www.placer.courts.ca.gov.

1. M-CV-0082549 Johnson, Kip v. Boyd, Michael

Motion for Attorney’s Fees and additional sanctions against Defendants pursuant to Code of Civil Procedure section 128.5

Plaintiff moves the court for attorney’s fees and sanctions pursuant to Code of Civil Procedure § 128.5.

Defendant Anne Laure Boyd filed an untimely opposition on July 24, 2026. Nevertheless, in its discretion, the court considered her filing.

Plaintiff moves the court to grant sanctions against defendants pursuant to Code of Civil Procedure § 128.5, which states, “[a] motion for sanctions under this section shall ... describe the specific alleged action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay.” Cal. Civ. Proc. Code § 128.5 (f)(1)(A). Plaintiff states defendants acted in bad faith by appealing this court’s order of February 17, 2026.

The court notes that in her opposition to the previously filed motion to enforce settlement agreement, defendant stated in her declaration the settlement was executed under duress, coercion, and extreme psychological pressure. Although the court rejected her argument

based on a lack of evidence, the court does not find that defendants' appeal of the court's order was done in bad faith.

As plaintiff has not demonstrated defendants' have acted in bad faith, the request for sanctions against defendants pursuant to Code of Civil Procedure §§ 128.5 is denied.

2. M-CV-0092493 Wells Fargo Bank NA v. Santiago, Jazz

Motion for Judgment on the Pleadings

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading, or be based on facts which the court may judicially notice. (*Id.* at subd. (d).)

Here, plaintiff has not provided a declaration of costs in support of the costs it is requesting. Therefore, plaintiff does not demonstrate entitlement to the requested costs of \$430.

Additionally, the prevailing party of a granted motion must provide all other parties or their attorneys with notice of the court's decision or order. (Code. Civ. Proc., § 1019.5, subd. (a).) Here, there is no evidence in the court's file that plaintiff has served defendant with notice of entry of the court's order deeming matters admitted.

The court on its own motion continues this matter to **September 22, 2026 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a notice of entry of the court's order deeming matters admitted, a declaration of costs in support of the costs plaintiff is requesting, and a notice of continued hearing by September 11, 2026.

3. M-CV-0095373 Mariner Finance v. Moser, Ronald T Sr.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Deem Matters Admitted

Plaintiff's unopposed motion to deem admitted plaintiff's request for admissions, set one, is granted. (Code Civ. Proc., § 2033.280.) Defendant Ronald T. Moser, Sr. is deemed to have admitted the matters set forth in plaintiff's requests for admissions, set one.